

File No.: EXP202301238

RESOLUTION ON THE FILING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 19, 2022, a complaint was filed by A.A.A. with entry registration number REGAGE***NUMBER.1 before the Spanish Agency for Data Protection against B.B.B. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

"(...) the complained party has installed a surveillance camera in a passageway between commercial galleries, being a public easement passage between the Commercial Galleries of Calle ***ADDRESS.1 and the Commercial Galleries of Calle ***ADDRESS.2, in Ourense, without any administrative authorization or that of the Community of Owners of the Commercial Gallery of Calle ***ADDRESS.2.

It also points out that there is a surveillance area sign that is hardly accessible, given the height at which the sign is located (...).

It provides images of the location of the camera and the surveillance area sign (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party on 09/16/22, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was duly received as evidenced by the acknowledgment of receipt in the file.

THIRD: On 10/06/22, the first written response from the complained party was received, acknowledging responsibility for the installation, citing security reasons for the premises where they carry out their main activity for its presence, providing documentary evidence of the capture angle on the system's screen.

FOURTH: On 11/16/22, a new supplementary written response was received regarding the "facts" described, providing new documentation that clearly shows the informational sign of the surveillance area at a visible distance.

FIFTH: On November 19, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

LEGAL GROUNDS

I

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

In this case, the complaint dated 08/19/22 is examined, through which the presence of a camera in a public transit area is reported without the consent of the Community of Owners.

The aforementioned facts, if confirmed, could constitute a presumed infringement of Article 6,

paragraph 1, letter e) of the GDPR, “the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.”

It is important to clarify that any issue related to the LPH (Horizontal Property Law 49/1960) must be addressed in civil jurisdiction, as it is the competent authority for such matters related to Communities of Owners.

From the data protection perspective, the complained party collaborates with this agency, citing various acts of vandalism on the façade where their workplace is located as the main reason for the installation.

This agency has extensively expressed its rejection of acts of vandalism of any nature (e.g., graffiti, damage, waste, etc.), considering the presence of cameras to be an appropriate measure that sometimes deters such “behaviors.”

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The presence of the sole camera is duly informed through a notice that allows for the knowledge that it is a video-surveillance area, being oriented horizontally towards the exterior facade, with minimal impact on pedestrians who have the width of the passage to transit freely through the space in question.

The very attitude of the respondent collaborating with this agency does not denote an intention to affect the rights of third parties, but rather aims at the mere protection of the facade where their business is located against repeated acts of vandalism, which occur precisely because it is situated in an area that is little trafficked at night, allowing this element to at least substantiate the facts constituting a Crime of property damage.

Therefore, the measure adopted is considered suitable against the described acts of vandalism, with minimal impact regarding the “data processing” of third parties, and the system is sufficiently informed from the perspective of the applicable regulations.

Article 4, section 3 of Instruction 1/2006 of November 8, from the Spanish Agency for Data Protection, regarding the processing of personal data for surveillance purposes through camera or video camera systems (*currently in force).

“The cameras and video cameras installed in private spaces may not capture images of public spaces unless it is essential for the intended surveillance purpose, or it is impossible to avoid it due to their location. In any case, any unnecessary data processing for the intended purpose must be avoided” (*the underlining belongs to this Agency).

In similar terms, paragraph 2 of Article 22 LOPDGDD (Law 3/2018) states:

“2. Images of public roads may only be captured to the extent that it is essential for the purpose mentioned in the previous section.”

As indicated, the location of the establishment in an area situated between galleries makes it an ideal target for this type of behavior that is proliferating in cities, which constitutes uncivil behavior aside from being considered illegal, with the consequent cost for municipalities and individuals who must bear them, justifying the proportionality of the measure, which must necessarily be oriented in the least invasive manner towards the facade of the establishment.

It should be noted that sometimes a restrictive interpretation of the regulation can lead to situations of injustice, as would be the case if the removal of the device in question were ordered, which would result in unnecessary suffering for the respondent, who would have to witness new acts of vandalism occurring on their facade with the consequent economic cost for them.

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III

In accordance with the above, taking into account the specific circumstances of the case, it is not considered that the facts presented constitute a violation of the current regulations on data protection, without prejudice to a different interpretation regarding the presence of the camera in a "community" element by the competent civil judicial bodies. It is advisable, in any case, in the opinion of this agency, to reach a consensual solution that allows for the presence of the device under the terms outlined. Therefore, based on what has been indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Thus, in accordance with what has been stated, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to Ms. A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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